

City presents evidence that the 311 records show scattered sidewalk uplift at different, non-adjacent locations on Hoytt Street. The sidewalk at 3618 Hoytt Street is located approximately 0.1 miles (507 feet) from 3541 Hoytt Street. The sidewalk at 3515 Hoytt Street is located three (3) houses south and approximately 300 feet from 3541 Hoytt Street. The December 2023 service requests concerned both curb and sidewalk at 3540 & 3552 Hoytt due to roots from trees on parkways lifted both. While the sidewalk at 3540 and 3552 Hoytt Street is located across the street from 3541 Hoytt Street, the December 2023 repairs involved a different parkway with a different tree, not the same condition.

Plaintiff points to the City's practice that Public Works crews will organize and operate within an expanded work zone to remediate the potentially dangerous condition(s) in the area, specifically walking up and down sidewalk towards the neighboring homes approximately 30-80 feet from the area of the potentially dangerous condition. However, the expanded work zone practice is a general practice, not evidence that any crew actually inspected 3541 Hoytt's frontage. This is generalized awareness of a street-wide mechanism, not constructive notice of the specific condition.

City carried its burden to present evidence it had neither actual nor constructive notice of the dangerous condition that assertedly caused Plaintiff to fall, and Plaintiff presented no evidence in opposition that raised a triable issue of fact as to this essential element of her dangerous condition of public property claim.

Because the defect is trivial as a matter of law and the City had no notice, either ground independently supports summary judgment. Motion for Summary Judgment is granted. City to submit a proposed judgment in Defense favor within 30 days of this order. The Court will vacate the TSC calendared for 9/23/2026 and set the matter for a non-appearance OSC re receipt of proposed judgment as to Defense on 10/23/2026 at 8:30 a.m. in Dept. 6.

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CASE #	CASE NAME	HEARING NAME
CVRI2503513	COUNTY OF RIVERSIDE VS TSC STATION LLC	MOTION FOR PRELIMINARY INJUNCTION

Tentative Ruling:

The Motion for Preliminary Injunction is unopposed. Accordingly, the motion is granted in all respects. Moving party is to give notice of ruling within 10 days of this ruling. Moving party is ordered to submit an order for the Court's signature.